

2:00 PM

LINE 4

24-CIV-08041

SHOBHANA HARTMAN VS. GENERAL MOTORS, LLC.

SHOBHANA HARTMAN
GENERAL MOTORS, LLC.

LARRY W CHAE
XYLON DAVID QUEZADA

GENERAL MOTORS LLC'S DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

TENTATIVE RULING:

Defendant General Motors LLC's demurrer to the fifth cause of action for fraudulent inducement-concealment raised in Plaintiff Shobhana Hartman's Second Amended Complaint (hereinafter "SAC"), filed March 17, 2026, is SUSTAINED WITHOUT LEAVE TO AMEND.

The underlying lawsuit is a Song-Beverly Act action regarding plaintiff's January 2, 2020, warranty contract with Defendant GM regarding a 2020 Cadillac XT6, vehicle identification number 1GYKPDRS8LZ134541 ("subject vehicle"), which was manufactured and/or distributed by Defendant GM. The subject vehicle was purchased at GM authorized dealer Michael Stead Cadillac in Walnut Creek, California. (SAC ¶ 6.)

Defendant demurs to the fifth cause of action raised in the SAC as barred by the statute of limitations, for failing to state sufficient facts to establish the fraud cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e) and for failure to allege a transactional relationship giving rise to a duty to disclose.

On July 13, 2026, Plaintiff filed a Notice of Non-Opposition and stated that Plaintiff does not oppose the demurrer. Given the notice of non-opposition filed by plaintiff through counsel, the Court finds it appropriate to sustain the demurrer WITHOUT LEAVE TO AMEND. However, the Court asks that in the future, if a party is not going to oppose a motion, that the motion be taken off calendar and a stipulation entered. This court used the valuable resources of research attorneys, the clerk's office, and a judge to file and review the papers, which resources could have been used for other cases.

Accordingly, demurrer is SUSTAINED as to the fifth cause of action.

Defendant has ten (10) days from service of written notice of entry of order by to answer. (Cal. Rules of Court, rule of Court 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for defendant shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 5

24-CIV-08041

SHOBHANA HARTMAN VS. GENERAL MOTORS, LLC.

SHOBHANA HARTMAN
GENERAL MOTORS, LLC.

LARRY W CHAE
XYLON DAVID QUEZADA

GENERAL MOTORS LLC'S MOTION TO STRIKE PUNITIVE DAMAGES FROM PLAINTIFF'S SECOND AMENDED COMPLAINT

TENTATIVE RULING:

Defendant General Motors LLC's unopposed motion to strike to the fifth cause of action for fraudulent inducement-concealment raised in Plaintiff Shobhana Hartman's Second Amended Complaint (hereinafter "SAC"), filed March 17, 2026, is GRANTED.

Background

The underlying lawsuit is a Song-Beverly Act action regarding plaintiff's January 2, 2020, warranty contract with Defendant GM regarding a 2020 Cadillac XT6, vehicle identification number 1GYKPDRS8LZ134541 ("subject vehicle"), which was manufactured and/or distributed by Defendant GM. The subject vehicle was purchased at GM authorized dealer Michael Stead Cadillac in Walnut Creek, California. (SAC ¶ 6.)

Defendant brings the instant motion to strike on the basis that there is no basis alleged in the SAC for supporting a claim for punitive damages. The Court agrees.

Legal Standard

A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Code Civ. Proc. § 437; *Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342.) Where there are grounds for a demurrer and a motion to strike, they must be filed together and noticed for hearing at the same time. (Code Civ. Proc. § 435, subd. (b)(3) and Cal. Rules of Court, rule 329.) A motion to strike can be made to strike irrelevant, false or improper matter inserted in any pleading or to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of the court. (Code Civ. Proc. § 436.)

Here, defendant's demurrer to the only cause of action in the SAC supporting a prayer for punitive damages, the fifth cause of action for fraudulent concealment, has been sustained. Absent a cause of action asserting fraud as an element the Court finds there is no basis for assessing punitive damages. Accordingly, the motion to strike the prayer for punitive damages is GRANTED.
